

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING FOR EVALUATIONS IN DETENTION CENTERS OR
5 STATE PRISONS OF DEFENDANTS IN CRIMINAL PROCEEDINGS WHEN MENTAL DISEASE OR
6 DISORDER IS AN ISSUE; PROVIDING RULEMAKING AUTHORITY; AMENDING SECTIONS 7-32-2222 AND
7 46-14-202, MCA; AND PROVIDING AN EFFECTIVE DATE."

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9 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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11 NEW SECTION. **Section 1. Examinations conducted at detention center or state prison.** An
12 examination to determine a defendant's fitness to proceed as provided in 46-14-202 may be conducted at a
13 detention center or state prison that meets the requirements of [section 2].

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15 NEW SECTION. **Section 2. Requirements for detention centers and state prisons -- rulemaking**
16 **authority.** (1) The department of public health and human services shall adopt rules to implement [section 1]
17 for a detention center or state prison to follow that reasonably adhere to a suitable facility to conduct an
18 examination to report on a defendant's mental condition. The rules must take into account:

19 (a) whether and how the defendant is to be segregated from or integrated with the general
20 population;

21 (b) whether the examination can be conducted at a behavioral health inpatient facility, and
22 providing rules for transport;

23 (c) what kind of food, clothing, schedule, and care is to be provided to the defendant;

24 (d) what kind of security and schedule is to be given to accommodate the mental health
25 professional conducting the examination;

26 (e) standards for the use of two-way electronic audio-video communication to conduct
27 examinations remotely; and

28 (f) standards to determine if a follow-up examination is needed at the state hospital.

(2) The department of public health and human services shall adopt rules to implement the qualification determination required by 46-14-202(1).

Section 3. Section 7-32-2222, MCA, is amended to read:

"7-32-2222. Health and safety of inmates. (1) Each detention center shall comply with state and local fire codes for correctional occupancy and with sanitation, safety, and health codes.

(2) Designated exits must permit prompt evacuation of inmates and detention center staff in an emergency.

(3) When there is good reason to believe that the inmates may be injured or endangered, the detention center administrator shall remove them to a safe and convenient place and confine them there as long as necessary to avoid the danger.

(4) Each detention center shall adopt a policy to allow for the evaluations provided for in [section 1]. The policy must not conflict with the rules adopted by the department of public health and human services pursuant to [section 2]."

Section 4. Section 46-14-202, MCA, is amended to read:

"46-14-202. Examination of defendant. (1) If the defendant or the defendant's counsel files a written motion requesting an examination or if the issue of the defendant's fitness to proceed is raised by the court, prosecution, or defense counsel, the court shall appoint at least one qualified psychiatrist, licensed clinical psychologist, or advanced practice registered nurse or shall request the superintendent of the Montana state hospital to designate at least one qualified psychiatrist, licensed clinical psychologist, or advanced practice registered nurse, who may be or include the superintendent, to examine and report ~~upon~~on the defendant's mental condition. Whether a psychiatrist, licensed clinical psychologist, or advanced practice registered nurse is qualified to examine and report on the defendant's mental condition must be determined by the department of public health and human services.

(2) The court may order the defendant to be committed to a hospital or other suitable facility, which may include a detention center or state prison satisfying the requirements of [section 2], for the purpose of the examination for a period not exceeding 60 days or a longer period that the court determines to be necessary for

1 the purpose and may direct that a qualified psychiatrist, licensed clinical psychologist, or advanced practice
2 registered nurse retained by the defendant be permitted to witness and participate in the examination.

3 (3) In the examination, any method may be employed that is accepted by the medical or
4 psychological profession for the examination of those alleged to be suffering from mental disease or disorder.

5 (4) (a) The costs incurred for an examination ordered under subsection (2) must be paid as
6 follows:

7 (i) if the issue of the defendant's fitness to proceed was raised by the court or the examination
8 was requested by the prosecution, the cost of the examination and other associated expenses must be paid by
9 the court or, in district court proceedings, by the office of court administrator, except as provided in subsection
10 (4)(a)(iv);

11 (ii) if the examination was requested by the defendant or the defendant's counsel, the cost of the
12 examination and other associated expenses must be paid by the defendant or, if the defendant was
13 represented by an attorney pursuant to the Montana Public Defender Act, Title 47, chapter 1, by the office of
14 state public defender, except as provided by subsection (4)(a)(iv);

15 (iii) if the examination was jointly requested by the prosecution and defense counsel or the need
16 for the examination was jointly agreed to by the prosecution and defense, the cost of the examination and other
17 associated expenses must be divided and paid equally by the court or, in district court proceedings, by the
18 office of court administrator, and the defendant or, if the defendant was represented by an attorney assigned
19 pursuant to the Montana Public Defender Act, Title 47, chapter 1, by the office of state public defender, except
20 as provided in subsection (4)(a)(iv);

21 (iv) any costs for an examination performed by an employee of the department of public health and
22 human services, any other associated expenses at a facility of the department of public health and human
23 services, and any other associated expenses for which the legislature has made a general fund appropriation to
24 the department of public health and human services may not be charged to the office of court administrator or
25 the office of state public defender.

26 (b) For the purposes of this subsection (4), "other associated expenses" means the following costs
27 incurred in association with the commitment to a hospital or other suitable facility for the purpose of
28 examination, regardless of whether the examination is done at the Montana state hospital or any other facility:

(i) the expenses of transporting the defendant from the place of detention to the place where the examination is performed and returning the defendant to detention, including personnel costs of the law enforcement agency by whom the defendant is detained;

(ii) housing expenses of the facility where the examination is performed; and

(iii) medical costs, including medical and dental care, including costs of medication."

NEW SECTION. **Section 5. Codification instruction.** [Sections 1 and 2] are intended to be codified as an integral part of Title 46, chapter 14, part 2, and the provisions of Title 46, chapter 14, part 2, apply to [sections 1 and 2].

NEW SECTION. Section 6. Effective date. [This act] is effective October 1, 2025.

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